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Avoiding Language Discrimination in the Workplace

By Bridget Miller, Contributing Editor | Mar 14, 2016 | HR Management & Compliance

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Have you heard of language discrimination? If not, you’re not alone; it’s not a commonly-discussed form of discrimination, but it’s important nonetheless because it relates directly to national origin discrimination—which most of us know to be illegal under Title VII of the Civil Rights Act of 1964. In fact, “linguistic characteristics” is specifically noted as a component of national origin.

Knowing this, employers should be aware that language discrimination should not be tolerated in the workplace. But what does this mean in practice?

Tips for Employers

Given that employers need to avoid discrimination based on national origin, and language is often a component of this, what can an employer do to avoid language discrimination? Here are some tips:

- Be careful when placing only individuals with accents into certain roles. While it’s valid to ensure that the individual can perform his or her job—and an accent may legitimately interfere with that—employers should take care to confirm that there is a real problem (and not just a problem of perception) before taking action. Be especially wary if some accents are routinely called into question and others are not.
- Be wary of requiring only one specific language to be spoken at all times. In some circumstances, it could be argued that all employees need to speak a common language for safety reasons; but, employers should be careful not to overstate the requirement by completely banning all other languages from the worksite. Employers should also be careful not to ban specific languages (rather than simply requiring one language be spoken for safety purposes.)
- If fluency in a specific language is a job requirement, that’s acceptable, but it must be demonstrated that it’s truly required to perform the job. If there is a test required to confirm proficiency, employers should give it to everyone and must not single out individuals who appear to speak more than one language.
- Train everyone who is involved in the interviewing process how to avoid questions that could imply discriminatory bias. Ensure interviewers know to not single out individuals who have an accent.
- Also, train everyone involved in the hiring process to avoid actions that could appear to be discriminatory. For example, employers have an obligation to hire only individuals who have the legal right to work in the United States. However, that should be asked of every applicant, not just those who have an accent.
- Train all supervisors and managers to recognize that 100% English fluency is not necessarily required for high job performance. Supervisors need to be aware not to inadvertently overlook or otherwise negatively affect individuals who are not native speakers if this is not something that is legitimately problematic in their daily work performance.
- Employers need to also review all state and local laws; many states have stricter rules regarding language requirements and what employers must allow.

Employers should remember that discrimination can occur within the workplace—it’s not just limited to hiring decisions. If an employee is routinely overlooked for a promotion, for example, based on a discriminatory bias against his or her accent or fluency level (in the absence of any true performance issues), that is certainly discriminatory—and it can happen almost subconsciously, so employers must be aware and must take steps to combat this risk.

*This article does not constitute legal advice. Always consult legal counsel with specific questions.

About Bridget Miller:

Bridget Miller is a business consultant with a specialized MBA in International Economics and Management, which provides a unique perspective on business challenges. She’s been working in the corporate world for over 15 years, with experience across multiple diverse departments including HR, sales, marketing, IT, commercial development, and training.

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